**IN THE COUNTY COURT AT LINCOLN**

Claim number: 019JE538

BETWEEN:

MSEM UK LTD (Claimant)

and

FISHBONE CONSTRUCTION LTD (Defendant and Claimant on the counterclaim)

# WITNESS STATEMENT OF DAINIUS DRULIA

Site manager

1. I am Dainius Drulia, a site manager. My address is _____. I make this statement from my own knowledge. Where I say what someone else told me, I say who it was.

## My work for Fishbone

2. I was site manager on the BBC Roath Lock project from 3 February 2026.

3. Andrejus from Fishbone called me and asked me if I could go to Central Square for the handover. He had a feeling that something was not good down there, and an independent view would be helpful.

4. I was at the handover meeting on 12 February 2026, and then on 13, 14, 15, 16, 17 + 3 extra hours, 24, 25, 26 and 27 February 2026. On the rest of the days I was at Roath Lock.

## The handover meeting on 12 February 2026

5. At the handover meeting there were: me, Mikheil Davidans, Dave from J4, Liam from Emcor, and the architect. All of them were upset and said they did not expect from the Macdonalds/Fishbone team, after such a long trail of projects, that we did not hand it over in a completed state. Especially, they were pointing at the shadow gap detail, the silicone beads between panels and the tile skirting not being mitred.

6. The architect and Dave from J4 told me "you know how we expect it should look" and said they would forward a snag list later.

7. This is what I saw. There was no shadow gap: they had put a strip of laminate on top of the panels. In one cubicle the grout line was not 3mm, but 15mm along the wall. There were a lot of chipped panels, two chipped mirrors, and uneven gaps between doors and walls.

**Mr Davidans on 12 and 13 February 2026**

8. I saw Mr Davidans on site on 12 February and on 13 February. He left the job on 13 February after 14.00. I sent a message to Fishbone. He was complaining about how tired he was and that everyone was blaming him.

9. Mr Davidans said to me: "Because now there is me and Sebastian, he will go home. He done his 10 weeks and he is tired."

**The meeting on 17 February 2026**

10. The site meeting I remember was on 17 February 2026. Together with Andrejus there were Minda (Mindaugas Gaudiesius), Dave Mac and Dave from J4. Both Daves were asking us how it was possible not to put it right in 10 weeks' time. In 10 weeks' time we can build a shop, and now we were not able to build 5 walls. Both Daves told Minda and Andrejus that they do not want to see Mikheil on any of their projects in future, if we have any.

**The work I did from 13 February to 1 March 2026**

11. We removed the laminated strip from the top of the panels, then removed all the panels and cleaned them from silicone and adhesive. We readjusted the Z bars and hung the panels back. We removed the front wall panels with the door, set new lines and assembled the back wall panels and doors. We changed the chipped mirrors. Then we replaced all the tile skirting with mitred corners.

12. I took photographs, or sent or received messages, about the work.

**Payment**

13. I asked Fishbone for a £3000 advance in November 2025. They paid me that, and after I came back from holidays to run the project we agreed to deduct it from my payments. We have a payment agreement with Fishbone: payment 12 days after invoice. I send invoices on Sundays for the week I have worked.

**Other points**

14. Mr Davidans's decisions, like putting the laminated strip in front of the panels, not behind, show that he does not really understand, or has never done such things before. He had worked before with Fishbone on BBC projects with the same architect team, so he should know the exact details which the architects visualise and ask for. The tile skirting was not mitred.

15. I am back in Lithuania, but I am available on a video call if needed.

**Statement of truth**

I believe that the facts stated in this witness statement are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: _____

Dainius Drulia

Date: _____